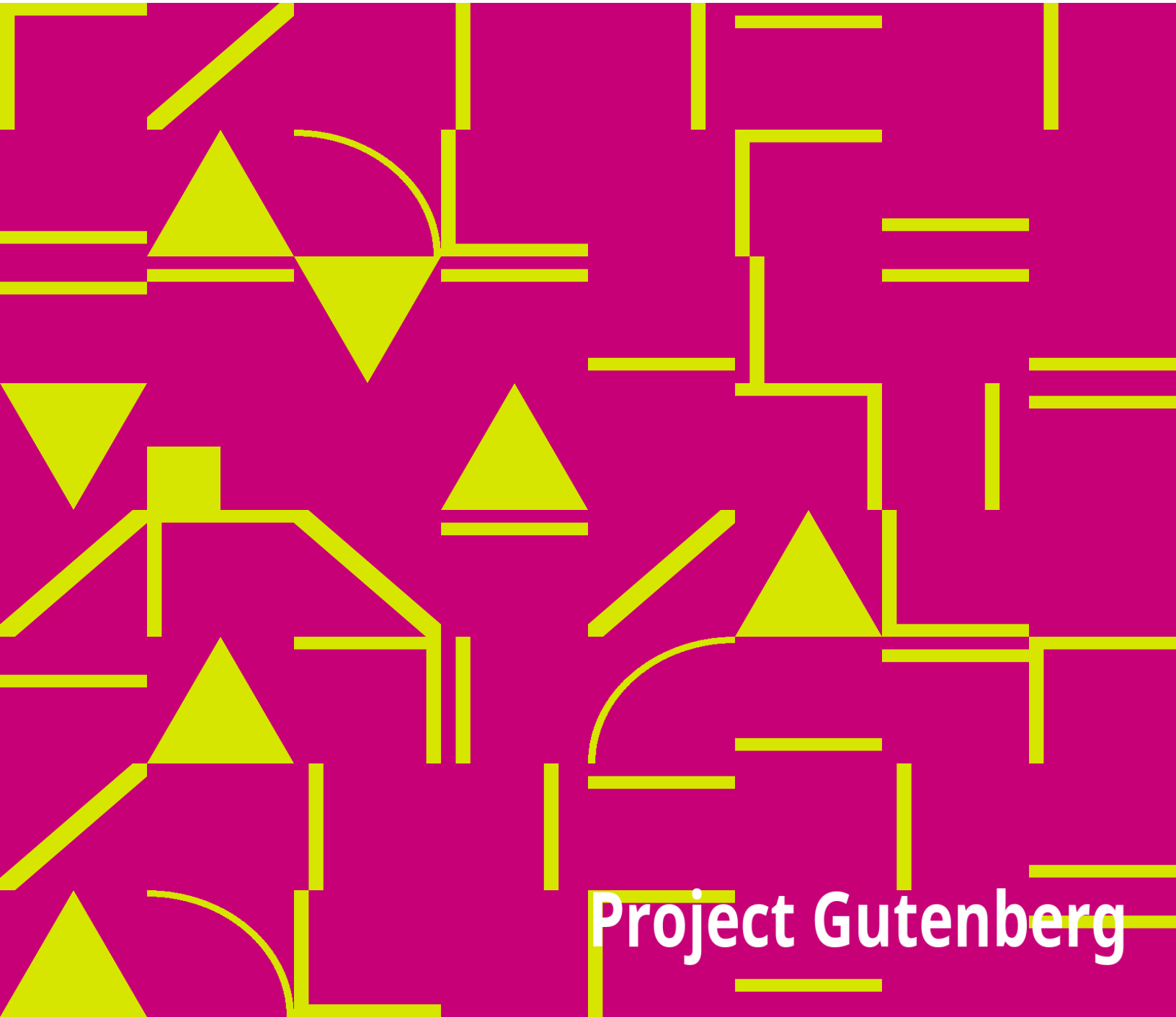


On the Trail of Deserters; A Phenomenal Capture

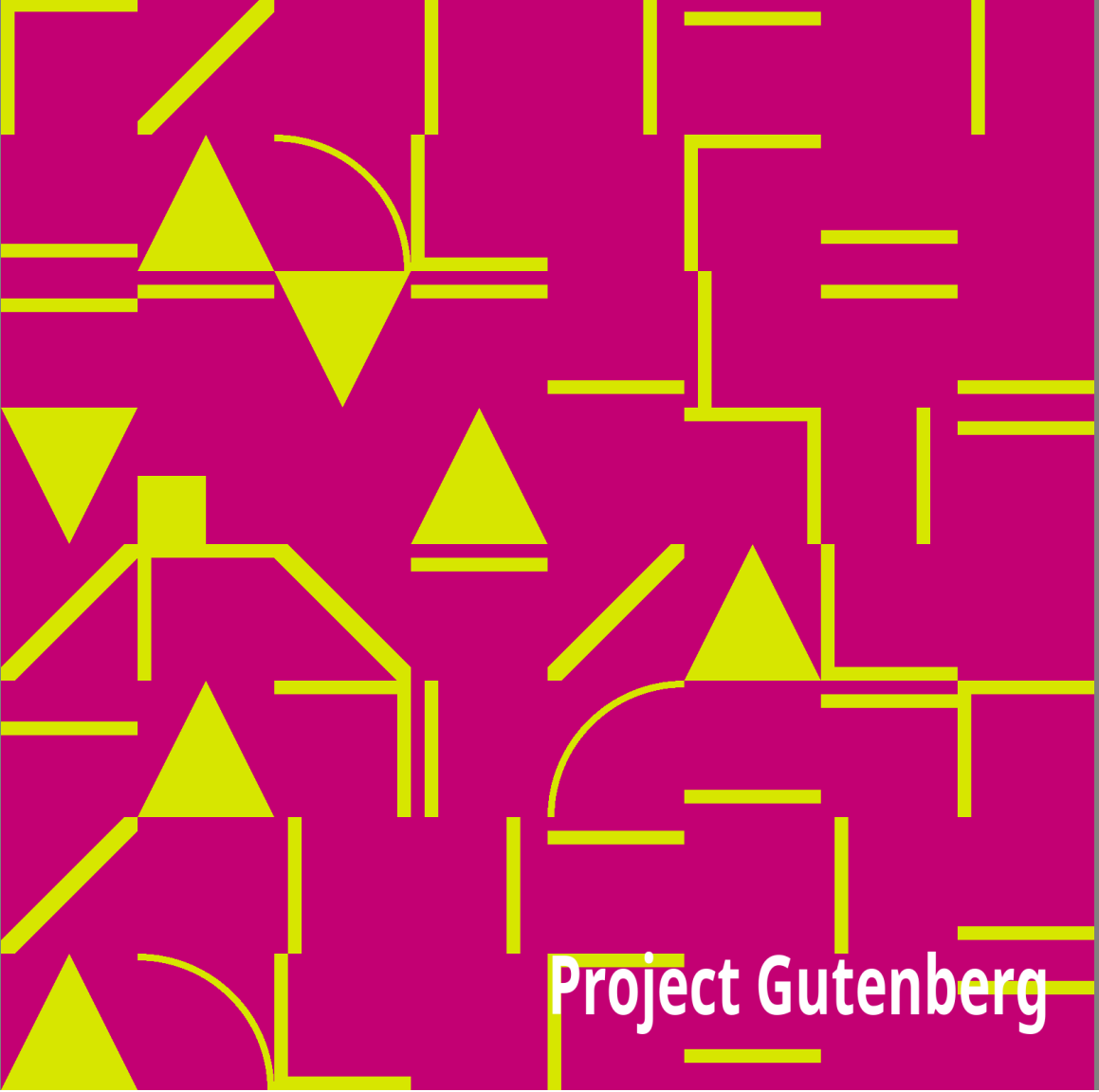
Robert Goldthwaite Carter



Project Gutenberg

On the Trail of Deserters; A Phenomenal Capture

Robert Goldthwaite Carter



Project Gutenberg

The Project Gutenberg eBook of On the Trail of Deserters; A Phenomenal Capture

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: On the Trail of Deserters; A Phenomenal Capture

Author: Robert Goldthwaite Carter

Release date: September 9, 2010 [eBook #33684]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33684

Credits: Produced by Robert A. Brookes and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK ON THE TRAIL
OF DESERTERS; A PHENOMENAL CAPTURE ***

Produced by Robert A. Brookes and the Online Distributed

Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

ON THE TRAIL OF DESERTERS

A Phenomenal Capture

By

Captain Robert Goldthwaite Carter
U. S. ARMY

WASHINGTON, D. C. GIBSON BROS., PRINTERS, 1920

On The Trail of Deserters.

The year of 1871 had been so full of incidents and far reaching results for the Fourth Cavalry and its new Colonel, Ranald S. Mackenzie, that it is somewhat difficult to go back into the dim vistas of that period and select the one incident, or absorbing event which would be either of greatest magnitude or afford the most thrilling interest—

This capture of ten deserters, however, under circumstances of more than ordinary importance, since it is believed to be the record capture ever made in the Military Department of Texas, or, perhaps for that matter, of any Military Department in the United States—came about as closely in touch with the writer's life as almost any other experience he ever had while serving as an officer of that regiment—including, as it did, terrible exposure, and unavoidable hardships and privations—

Like all of the other Cavalry regiments in our Army, which were then doing about three fourths of all the active, effective work—the work that disables or kills—in the subjugation of the savage tribes in the United States, driving them into Indian reservations, and rendering it possible for the frontier border to be settled, and civilization to be advanced to a point where it could feel safe from raids and bloody incursions, the Fourth U. S. Cavalry, notwithstanding its high morale and almost perfect state of discipline—had its share of desertions—

Was Mackenzie a "Martinet"

Mackenzie was not a West Point "martinet", as that term is generally understood in our Army—but, from four wounds he had received, three in the Civil War, and one that year in the campaign against Quan-ah Parker,

the Una-ha-da Comanche Chief—and almost criminal neglect of his own health, in his intensity of nature and purpose in prosecuting these arduous Indian campaigns—he had become more or less irritable, irascible, exacting—sometimes erratic, and frequently explosive—

This much may be said, however, it is certain that notwithstanding his physical condition, and his mental temperament resulting therefrom, he never sought to inflict an injury or punishment upon anybody unnecessarily—never became a petty or malicious persecutor, hounding a man into his grave—and when it became evident to him as well as to others that he had done any of his officers or men an act of injustice, nobody could have been more open, free and frank in his disavowal of that act, or quicker to apologize and render all the reparation possible in his power— This applied to any and all down to the last Second Lieutenant and private soldier in the regiment—

One man never knows another so well, even intimately—as when he is thrown closely in contact with or lives and sleeps and eats with him— The writer had done all with Mackenzie during a greater part of this period of 1871—having been his Post Adjutant twice—during Gen. Sherman's inspection in May, at the time of the massacre of Salt Creek Prairie, and prior to our Expedition of that year, and his Field Adjutant on his entire campaign in his abortive attempt to strike Kicking Bird's band of Ki-o-was before he could be stampeded into the Fort Sill Reservation—from May 1st until Oct. 3—I had got to know him very well—

Causes for Desertion

Both officers and men had been under a terrific high-keyed pressure—a very great mental and physical strain, almost to the breaking point; were tired and dispirited because the results and the hard work performed, had

not justified their expectations and because they could not then see any immediate relief from the performance of such exacting duty— The pace had been a little too fast even for the Fourth Cavalry— Much of the spirit and enthusiasm for such unremunerative work was at a very low ebb— While it had not yet approached a complete discouragement, it was a condition of supreme disgust and contempt at the methods employed— They felt that with the Government at Washington nullifying and rendering most of their hard labor abortive, that success in those long, weary and extremely exhausting Indian campaigns was not so much dependent upon their absolute loyalty to duty and perfect willingness to sacrifice themselves when necessary in achieving results, as upon the paralyzing acts and influence of the "Indian Ring" in Washington and the ever changing political cesspools of a politically ridden country— They wanted to see the tangible results or fruits of such terribly hard service and to feel that such hardships, privations and sacrifices as they had experienced, had not been in vain or wasted by a gang of cold blooded, unscrupulous plunderers and grafters remote from the scene of these border activities. We have but recently passed through a similar experience with the same class—in fact are doing it now. Like "*death and Taxes*," we have them with us always, especially in time of wars— It is then the vultures abound— It is then we have the jelly-fish, spineless slackers, the pussy-foot pacifists— conscientious objectors, chicken hearted shirkers—and—"let George do it" fighters—coming down to the secret renegades—traitors, and Bolshevik anarchists and bomb throwers— They have always been the curse of this Nation—the natural result,—as a rule—of the "Melting Pot" that does not melt—breeding a lot of mongrel curs and hybrids that should no longer be a part of our American life. It is feared they will always be with us—

Thus they reasoned—and the propaganda poison spread. These were some of the contributing, but not all of the real causes that led to what soon became almost an epidemic of desertions in the regiment— The last snow

storm in which they had floundered and wallowed into Fort Richardson, seemed to have destroyed the last atom of patriotic ardor and martial enthusiasm among even some of the best of our Indian scrappers— The loss of Quan-ah Parker's village in the snow, sleet and hail of that black, awful night on the solitary plateau of the "Staked Plains", when the entire command came so near perishing, and the swiftly moving mass of fleeing panic-stricken Indians was "so near, and yet so far"—had taken nearly all of the gimp, snap, and live-wire spirit out of our hitherto bold Fourth Cavalry warriors— Following this—the terrible monotony of the life—without amusements or recreations of any kind—no athletics or competitions; no libraries—infrequent mails; no hunting except a few men selected on account of their being expert shots (no ammunition then being issued by the Government for that purpose); no theaters or concerts; nothing but the dreary monotonous grind of guard and police duty—detached service, and the rather questionable pleasure they got out of some saloons and gambling hells which generally landed them "broke" and subjects for the guard house and disciplinary measures and more forfeiture of pay, hard labor or other punishment— These were the causes for the desertion epidemic. During this period of unrest and discontent, however, on account of the conditions described, there were few courts martial, nearly all corrective or disciplinary measures being applied by the Troop Commanders through the First Sergeants, under proper restrictions or limitations by the Colonel—"Knock downs" and "drag outs" were not infrequent, and at no extra expense to the Government— Sometimes the victim of an unfortunate "jag" was got under control by a 24 hours sojourn in the "orderly room", a "dip" in a water hole near by, the "boozer" being thrown in a few times "by order", or, if he became too obstreperous, abusive or insubordinate—a "sweat box"—a "30 pound log on a ring", or a "spread eagle on the spare wheel of a caisson" was resorted to to fully control the habitual drunk,

shirker or malingerer, all with the knowledge of and under the direct or indirect supervision of the Commanding Officer—

On the 29th of November it was reported that ten (10) men had deserted from one troop ("B"), and Mackenzie, thoroughly aroused now by the frequency of these wholesale desertions—took immediate and decisive action.

Rock-Ribbed Orders vs. Elastic Verbal Instructions

About dark on this day Mackenzie sent in great haste for Lawton and the writer and told us the situation; that he was going to send us out on this special trip in pursuit of deserters and to get ready as soon as possible. He would have a written order for us in a few minutes— We were generously informed that while it was not our turn on the detached duty roster for this service, yet—so and so was too sick—another had a cold—still a third was inefficient, and would never get results—and a fourth could not stand the gaff of a "Norther"—etc., etc.—*all so comforting and soothing (?)*— We were, therefore, "It"— We were to report to him in 30 minutes. We were each to select any Corporal in the regiment to accompany us— A black, and ominous "Norther" was brewing and it was then beginning to be bitter cold — We reported within the time given with our Corporals—and the following official order was placed in the writer's hands.

HEADQUART
ERS FORT
RICHARDSON,
TEXAS,
November 29th,
1871.

SPECIAL ORDERS NO. 280

(*Extract*)

* * * * *

V. Second Lieutenant *R. G. Carter*, 4th Cavalry, with a detail consisting of two non commissioned officers and eleven privates of that Regiment, mounted, fully armed and equipped, furnished one day's rations and sixty rounds of ammunition per man, will proceed at Retreat this day, in pursuit of deserters under the *verbal instructions* of the Commanding Officer of the Post. The A. C. S. will turn over to *Lieut Carter*, the sum of (\$250) Two hundred and fifty dollars, subsistence funds, for the purchase of subsistence for the men of his detail— The A. A. Q. M. will turn over to *Lieut Carter*, the sum of (\$300) three hundred dollars, Quartermaster's funds, for the purchase of forage for the public animals.

By Command of Colonel RANALD S. MACKENZIE,

(Signed) W. J. KYLE,

1st Lieut. 11th Infantry, Post Adjutant.

Lieut R. G. CARTER, 4th Cavalry—

The money was turned over to us by the Post Adjutant—Lawton receiving the same amount—and then turning to both of us—Mackenzie said: "In addition to those orders, I wish to give you special instructions for your guidance in this most important duty you are going on— I shall not expect you to follow them implicitly but to be guided by circumstances arising at the moment—and which, being on the spot, you will know how to deal with better than anybody else—and to use your best judgment and wisest discretion at all times— You are to keep one Corporal with you all the time, taking him into your confidence so far as you may deem it

necessary for your success. You are to go in different directions— Lawton is to go on the Decatur road—while you (the writer) are to follow the Weatherford road— You are to cover all of the intermediate settlements near and beyond those towns, seeking at all times the assistance of the Civil authorities and holding out to them the prospect of the Government reward (\$30) for the apprehension and delivery to you of each deserter— The towns should only be entered at night and then with a deputy sheriff or other civil officer— It should be systematically and thoroughly searched— Should you find that these deserters have headed for the railroads, and you have traced them that far—and it becomes necessary, drop your detachment, leaving it in charge of one non-commissioned officer, while you take the other with you, continuing the pursuit, even if it leads to Galveston and New Orleans, or, even to New York"—and then, hesitating somewhat—he added—pitching his voice to a high key, and as was his habit—snapping the stumps of his amputated fingers—"I don't want either of you to come back until you have accomplished results— I want these men brought back and punished— Obey the Civil Laws and if they are not violated and you stick to the spirit of your instructions, I will cover all of your acts with a 'blanket order.'" The writer suggested that Lawton and himself, and the Corporals whom we might select to remain with us wherever we went—should go in citizens clothes, since, if we had to "cut loose" from our detachments, we would be able to co-operate more effectively with the Civil Authorities when we might be acting as detectives about the large towns, especially at night— To this Mackenzie readily agreed, saying that it was an excellent and practical suggestion— He included this idea in his instructions— The writer had been at an immense conscript and draft rendezvous during the Civil War—among the worst classes of "substitutes" and "bounty jumpers"—ever known in the history of our Army— They were deserters from every Army and Navy of the world; had come over here for the huge bounties paid under our vicious conscript laws—only to desert—re-enlist

and repeat the method again and again— We frequently mingled with them in citizens clothes—got their plans, and either thwarted them or caused their arrest and punishment; On one occasion the execution of two for desertion.

We thought that these instructions were very lucid and certainly were very wide sweeping—enough so to satisfy the most exacting soldier— It looked like a winter's job had been cut out for us—and secretly in our hearts—we wished the trail might lead through the places he named. Visions of Galveston, New Orleans and "Little Old New York" loomed up very large—and alluring, for neither of us had visited those attractive "burgs" and elysiums of pleasure—for a long time—but the conditional, or "*If*" clause in this interview caused us to dubiously shake our heads—with feeling of hope, it is true, but not of elation—and not unmixed with some dread and apprehension for the future, hardly knowing what was before us in this, to us, most novel frontier adventure— It was now nearly dark, and wishing Mackenzie "Good Night", and stepping out into the gloom of approaching night to face the drizzle of a gathering "Norther," we (Lawton and the writer) shook hands and separated, both busily chewing the cud of reflection, inwardly cursing our reputed Civil War efficiency that had led to our selection for such "beastly" service, and industriously trying to digest and assimilate these most elaborate and elastic, carte blanche instructions the "Old Man" had given us— While we felt that in a measure, we were free lances—all freebooters, with nobody to say "Yea or Nay", our own Commanding officers with no one to disturb our independence of thought and action (and with such limited means of communication at that period and under such conditions, one can easily see that no such limitations could be imposed as are placed to-day), we also realized the terrible responsibility so suddenly thrust upon us, and the great risks we ran in dealing with determined men wrought up to such a desperate pitch as they were by alleged acts of injustice—and hard and fast conditions under which they were serving— All this aided, as we felt these men might be, by other

equally bad gun-men—all over and down through that country wherever we might trail them.

I had selected Corporal John B. Charlton of Troop "F" for my *civilian* companion— I considered him one of the best non-commissioned officers in the regiment— While he had a free, rollicking, reckless, dare devil spirit about him—he was easily controlled, and perfectly amenable to discipline — He was a very handsome, intelligent, active, energetic man of about 24 years of age—and was on his second 5 years enlistment—his first having been in the Fifth Artillery— He was fully six feet—spare, sinewy, straight as an arrow—an athlete—one of the best riders, shots and hunters, and all round soldiers in the regiment— He had a straight nose—strong chin and steel-blue eyes, the glint of which, when he was aroused—looked dangerous when squinting down the sights of our old Spencer Carbines— He reminded me of that free, rollicksome—"devil-may-care" d'Artagnan, one of the "Three Musketeers"— He probably had a past like many other enlisted men who entered the regular army after the Civil War— If so, for obvious reasons, we never pried into that past. He entered into the spirit and novelty of this new adventure with commendable zeal, energy, spirit and enthusiasm— I felt that I knew my man perfectly, and that, under all circumstances, he would prove absolutely loyal to all duty and be faithful to whatever trust I reposed in him—

We were all well mounted, well armed, and had one good, well trained pack mule to carry our grub— We both had guides, the one assigned to the writer being William Rhodes, a rancher, who had been driven in to the shelter of the post by Indians, a very quiet, sturdy, honest and reliable man who knew the country fairly well within a radius of 40 miles, but beyond that his knowledge was no better than my own or any other man in the detachment, besides being one more man to feed and care for after he had

got beyond his bailiwick as a post guide— I never took another guide beyond a 50 mile radius.

The Pursuit—A Howling "Norther"

At 7:15 we made the start—the writer taking the Weatherford stage road across the prairie, a mere trail— The "Norther" broke with full force, with alternate snow, rain, hail and sleet—a heavy gale driving it into our faces— We left the trail and rode into several freighters' camps, where they had sought shelter in the timber, at great risk to our lives—to search for the missing men but without learning anything— They had immense roaring fires which could be seen for a long distance, but so great was their fear of Indians, that we found them up and ready, rifle in hand—and behind their wagon bodies—determined to sell their lives as dearly as possible— It was hard to tear ourselves away from these huge fires—and plunge across the interminable prairies in the teeth of the increasing gale— We were none too warmly clothed— The men and horses—hardly recovered from their year's hard work—were beginning to show the effects and wear and tear of such a frightful storm. Believing that we should all perish if we continued the ride all night, and Rhodes, the guide, agreeing with me—upon his informing me that his brother had a ranch only a mile or two off the road, directions were given to him to head for the ranch by the shortest line so that we could secure the needed shelter— After a fearful struggle over several miles of an open stretch of prairie, breasting into the teeth of one of the worst blizzards ever recorded in Texas, we reached the ranch, the men and horses almost exhausted, and completely coated with ice— The ranch proved to be a low, one story log house, with several out-buildings—a ramshackly horse shed and corn crib— It was midnight— Several dogs announced our approach, and Rhodes aroused his brother— Ordering the men to unsaddle, blanket the horses with their saddle blankets, and to "tie in" under the "lee" of the

buildings, the men to occupy the horse shed—Rhodes, the Corporals and the writer stalked into the shelter of the "shack"— There was but one room with a large stone fire place— Rhodes piled on the logs— The room had two beds in it— He and the writer, stripping off our outer frozen clothes, and hanging them up to dry in front of the blaze—occupied one bed—his brother, wife and infant child were in the other, while the two Corporals, with several large ranch dogs, curled up in their blankets on the open hearth — It was a "wild and wooly" night—when the baby wasn't crying the dogs were sniffing, growling, whining or whimpering over being disturbed by such an influx of strangers— We wore out the night with little or no sleep— When day broke it was found that the storm was still raging although the wind had somewhat abated— Feeding the horses liberally from Rhodes' corn cribs, for which we paid him generously—and after a hasty breakfast, we saddled up and started across the prairie to find the road— The country was one sheet of glare ice— Our horses were smooth shod— At the road we met Sergeant Faber of Troop "A" with a small detachment returning from some duty and going into Fort R. We learned from him that the deserters had been seen the night before in Weatherford, which was but a few miles away— We skated, slid and floundered along through the ice crust, a horse going down now and then until we reached a creek about one-half mile from W—— when the command halted and was placed in bivouac, concealed by heavy chaparral— Corporal Charlton was directed to get ready to accompany the writer at dark and afoot for a thorough search of the town and to begin to assume his role—

The Search—Amateur Army Detectives—The Corporal's Joke

We struck the town under cover of darkness, and proceeded to "comb" it, both heavily armed and with no insignia of rank on or about our citizens clothes or any indication that we were of the army— "Now, Corporal, you

are to preserve your incognito— You are to deal with your Commanding Officer as though we are simply two friends or acquaintances on a night's drive through the 'slums'; there are to be no—'Yes, Sir!' or—'No, Sir!'— No deference is to be paid—him— Don't forget your part! You are to be simply—'Green',—and the other party is to be plain 'Brown'— Have your guns handy, and at a given signal be prepared for a quick pull on the trigger— These are all the instructions necessary, except that you are under no circumstances to be separated from me for a moment—and watch me all the time for signals"— Charlton straightened up—saluted—replied—"Yes, Sir"! and that was the last recognition of rank the writer got during this adventure—

All night long we plied our trade of amateur detectives— No stone was left unturned— We worked the "dives", faro banks—brothels, saloons and questionable resorts, but without avail— The deserters had been seen but everybody seemed mum and blind or deaf and dumb— They had been paid off for several months—had scattered it—their money—liberally and had left the town— Nobody knew where— At one *gilded dive* "Green", becoming bold and watching his chance, assuming the detective role with some slight show of experience and with a most startling blase air said to the bespangled proprietress—"Didn't you have a place at one time in Jacksboro"? "Yes"!— "Well, then, you must remember Brown, here", pointing a finger at me— "Oh, yes!" was the reply— "I remember him well, and that he came often and I have often wondered what became of him"— Anger came to the front at this joke—but it had to be choked back—the instructions had been given— No frowns or even scowls or anything but a *positive order* would have disturbed the imperturbable musketeer Corporal—the d'Artagnan of our adventure at this point. The writer was married and had left his wife and child in the howling gale at Fort R——; and had never seen this "Jezabel"— His outraged dignity sustained a distinct shock— The Corporal was mildly rebuked later and it was passed by as part of the

duality of character which Mackenzie had forced me to assume if success was to be assured— Nothing was accomplished by our night's work— At day break, sending the Corporal back to the bivouac of the command, it was ordered to meet me in town at once— Just as we were deliberating what the next move was to be—Sergt. Miles Varily of Troop "E" with a mounted detachment rode into town— He had been to Huntsville, Texas, where he had conveyed Satanta and Big Tree, the Ki-o-wa Indian Chiefs—who had been in confinement at Fort R—— under sentence since July 6—to the State Penitentiary where they were to be confined for life for the massacre of Henry Warren's teamsters on Salt Creek Prairie— Varily had met and talked with the deserters on the Bear Creek Road to Cleburne— He said they were all well armed—and had declared that they would not be taken alive— This—he gave as his reason for not arresting them with his small force— He knew all of them and had identified them as men of Troop "B"— They were in a two-mule freighter's wagon, with a low canvas top drawn down tight for concealment— It was driven by a medium sized, but stocky built—civilian— At last there seemed to be a definite clue— They were evidently heading for Cleburne and Waxahatchie— I must overtake and capture them before they reached Cleburne—which was 45 miles distant, an all day ride— There was no time to lose—placing Charlton in the road—and the other Corporal with his men on both sides fanned out or deployed for a mile or more, and combing all of the ranches and small settlements, the writer pushed and directed the search all of the way without any further developments— Occasionally the detachments were signalled in to the road— Cleburne was reached at dark after a terribly hard ride, the storm still continuing, with a lull in the wind but growing colder— Securing the services of the Deputy Sheriff—we made a thorough search up to one o'clock but with no results.

A Sleepless Night—The Gettysburg "Johnny"

At 3 o'clock A. M. having sent the Corporal to bed and placed the men in bivouac in the edge of the town, the writer, having secured a small map of Texas, was seated in front of a log fire diligently studying the situation— The deserters must surely be somewhere in the near vicinity— They were certainly not in Cleburne— Where had they disappeared to after leaving Weatherford? Many roads and trails led out of Cleburne—some towards the railroads— No mistake must be made— A sudden inspiration seized me— I woke up the Corporal— "Corporal, find me a two seated carriage or conveyance of some kind with driver—'rake' the town—and get it here as soon as possible; rout out the detachment—and report yourself mounted to me at the same time"— "Never mind the expense"! In about 30 minutes Charlton was there with a closely curtained-in two-seated carriage, carry-all, or Texas "hack", with two mules, and a *one-legged driver*; also the entire detachment mounted— Amazement was on the faces of all— What was the play?— What was the game being "pulled off" by the "Old Man"? "Corporal Charlton, take your carbine and pistol and get in the front seat with the driver"—and turning to the other Corporal—(Jones)—"You will take our two led horses—and follow this 'hack'—never losing touch with it—but always remaining as much as possible out of sight—about a mile or two in the rear—concealing yourself as much as possible by the timber—Keep your eyes on this 'hack'—*one flash* of my handkerchief and you will drop further back out of sight if it is open country; two flashes, and you are to come up with your detachment and our led horses at a run—remember, and always keep out of sight as much as possible"— We moved out on the Hillsboro road—inquiries were made all along but with no satisfactory results— We scoured the settlements, ranches and side trails but without avail— We had had a description given us, however, of a certain two-horse team—with a number of men in it, which partially filled the bill— Feeling perfectly sure that they were breaking for the railroad, either at Corsicana or Waxahatchie—yet it was feared that we were on the wrong road— The

driver of our conveyance, or "dug out", it seemed, had been a confederate soldier, and had lost a leg at Gettysburg in the desperate charge of Longstreet's Corps on July 2—upon the "Round Tops" and the "Peach Orchard"— He had belonged to the Fifth Texas, Robertson's "Texas Brigade", Hood's Division, and strange to record had confronted the First Brigade—First Division, Fifth Corps, in which the writer had served on that fateful day, and in that death-strewn spot. He immediately *recognised an old enemy*, became extremely voluble, and insisted upon fighting the battle "o'er again", with many a story and reminiscence of his many campaigns, until, at length, he, not having been let into the secret of our plans, was so inclined to put in his time telling stories that we were in great danger of losing the object of an entire night's hard work— He even wanted to stop his mules to emphasize his points, when much to the "Johnny's" chagrin and to the intense amusement of Charlton, my d'Artagnan Musketeer, the "lines" "by order", were turned over to the latter, while the writer having no whip—prodded the mules along with a sharp stick—*Time*—and then *Time*—was our one objective— We were not so sure of our direction— It was getting late—and with our delays we were still some miles from Hillsboro— All was working well in our plans; the detachment was out of sight well to the rear—

We emerged from the cover of the timber upon a "hog wallow" prairie—and from this high, rolling hill or divide, when descending to the valley of a small creek, saw ahead—two miles or more—a small train of wagons in the hollow, moving to head this small "branch"— Talk about the thumping of one's heart!! Some intuition told me that my deserters were there; my pulse quickened perceptibly, and I almost shouted to the "Jehu"—who had been allowed to resume the "lines" but was slacking up—to "keep busy,"—and to gather his animals for a rallying burst of magnificent speed— Now the train was seen to split—some going around—while *one low canvas-topped two-horse wagon* kept on the road for the "branch"— Then I saw a number of

men—6 or 8—get out and try to wade across the stream. *They were the deserters!* of this I now felt sure— I said nothing—but sharply touched the Corporal's elbow, jumped from the "hack" and running back a few yards gave the handkerchief signal "two flashes"— The *detachment was in full view* on the high ground silhouetted against the sky. The Corporal had closed up too much while we were in the timber, and when emerging—exposed himself to the view of the men in the valley as I had feared— They had seen him, and scenting danger made a wild break— The detachment came forward with our led horses at a gallop—but the deserters, having crossed the stream and scattered, were now heading for the fringe of timber, chaparral and brush which either skirted, or was near, the creek—

The Capture

Once mounted I shouted for one Corporal to head off the main wagon train on the road—and detain it and *hold it at all hazards* until my return. Taking Charlton we dashed for the stream. My powerful horse bogged;— Dismounting in water up to my waist, by careful management he was soon out on dry land. Charlton led— "Get after them now, Corporal—Open fire! Shoot over their heads and close to them, but not to kill"— Finely mounted—and one of the crack shots in the regiment, with carbine advanced, he was in his element and "swung out" at a gallop for the men who were trying to gain the bushes or chaparral in the distance— He was an absolutely true type of the handsome, graceful soldier and rider, with the close seat and the American or cow-boy stirrup, and the resourceful, masterful, trained cavalryman of the days closely following the Civil War— Bang! Crack!! Crack!!! went his carbine— As I followed him I could see the dirt and dust sprayed over the fleeing deserters— As the shots whistled and struck about them, they instantly dropped to the ground for safety—and lay there until some men, whom I had recalled from the detachment, had followed me and

gathered them up as prisoners— None were to be shot unless they resisted. I gained the road to the brow of a hill overlooking the country. After securing five with no resistance, and being told by them that there were two more—a little darkey near by shouted—"Oh, golly Massa, dere dey go ober de hill, way yonder"— At least two miles away they could be seen running, fairly flying. The Corporal and writer dashed after them, and after a long ride and a diligent search in the bushes, together with a few warning shots—we secured them. With these men and the driver of their team we returned to the train—I had not fully trusted the other Corporal, on account of his seeming indifference, and he had somewhat hampered my plans and movements—so I felt anxious as to whether my orders to hold the train fast had been obeyed. He had, however, stopped the train and held the wagon master, and the whole "outfit" at the point of his carbine, as in a vise.

The wagon master was a cool and determined fellow with cold, grey eyes, and a pugnacious nose and chin; he and his teamsters were well armed, their guns showing conspicuously in their holsters—or open belt scabbards— He had been threatening the Corporal, and now, seeing no insignia of rank on my citizen's clothes, he began to threaten me with criminal prosecution as soon as he reached Hillsboro for illegally holding up his train— Visions of Mackenzie's instructions relating to a "violation of the Civil Laws", began to loom up large before my eyes. He saw my hesitation and becoming abusive began to be more insistent for the release of himself and men— Sizing up the situation at a glance, the bluff was made— "Look here, my man! We have found a wagon in your train filled with deserters from the United States Army— I am an officer of the Army—and if you don't stop your abuse I will put you in irons and take you along to the Civil authorities and turn you over on a charge of assisting them to escape"— That quieted him— "Are these all of the teamsters in your train? Produce every man who was with you when it was first sighted, or I will order my men to search it before you can go! Never mind your

threats! *We are out for deserters*". He replied: "These are two men who joined my train a few days ago; they are citizens— I know nothing about them— They can tell their own story." The two men stepped forward in citizen's clothes unarmed and with no "set up" or the slightest appearance or sign of the soldier about them. The larger and older, told with a strong Irish brogue a very straight story; how they had "been working" their way along; had sought the train for "shelter"—had "not been in the country very long", etc. The other was a mere boy. I was about to let them go with the train, none of the detachment or the deserters whom I had already secured being able to recognize or identify them, when my attention was suddenly attracted to the older man's face— It showed distinctly that a heavy beard *had but recently been shaved off*—and this as winter was coming on— I gave no signs, however, of having made this discovery, but said: "You teamsters can go—but I shall hold these men— If they are not deserters, they can easily clear themselves, and will be released". As I watched the older man's face, I saw him change color, but he maintained his nerve— replying that he would "prosecute me for false arrest and imprisonment," probably taking his cue from the wagon master—who, after more bluster and more threats of what he would do, disappeared in the distance and we never saw or heard of him again. It was a chance on the bluff— Loading the nine men thus accumulated into the old man's wagon, upon reaching Hillsboro, a few miles away, and securing the services of Deputy Sheriff, H. A. Macomber, we and the prisoners were given a good meal at the house of the jailer, J. A. Purnell, the first any had had since leaving Fort R—— and shortly after dark, the jailer leading with a lantern, the prisoners closely guarded, and the three citizens (?) loudly protesting in Chimmie Fadden's vernacular: "Wot 'tell"!—and then adding: "What's the use"! etc., the astounded ranchers of H—— saw this strange procession proceeding to the county jail to give them protection from the howling, icy gale—still blowing— All jails in Texas were then made of huge, square-hewn, green

logs—built up solid, and the outside thickly studded with sharp nails— Upon the outside a flight of rickety steps led up to a door heavily padlocked and barred. We entered by file, a sort of chamber or loft, about 12 or 14 feet square. In the centre of the floor was a large trap door with a ring in it— This trap being lifted a ladder was lowered down to the ground floor inside, and the prisoners were ordered to descend into this ground cell in which was but one small grated window, high up—for air only. The ladder then being drawn up and the trap door secured, they were supposed to be safe, as it was eight or ten feet from the floor of the cell to the floor of the loft— In this Hillsboro jail, however, the ladders had been broken and had disappeared, so that the deserters had to be let down by hand, the little short old wagoner coming last— It was most amusing to hear this well paid old scoundrel's squeals and whining, and his piteous appeals for mercy as he hung dangling in mid-air through the "Man hole" before dropping him the four or five feet to the ground. He kicked, squirmed and wriggled in his agony of fright; he moaned, groaned—grunted and sighed; begged, implored and prayed—in the most ridiculous manner— All the time the deserters below him, realizing how fortunate they were in being sheltered from the icy blast of the "Norther" now howling around the corners of the old log jail, were mocking—"booing" and sarcastically commenting on the little man's lack of sand—grit and courage— Having heard much and seen little of these Texas jails, except the outside, and at a distance, my curiosity was aroused to more closely examine one— The jailer tried to persuade me not to take the risk— But after assuring him that I had nothing to fear from these men in going down among them as I knew every one—and handing him my pistols—he lowered me down—passing the lantern down after me. After carefully examining this uninteresting hole very carefully, however, I felt that my curiosity had been amply satisfied—and cheering up the "old man" much to the amusement of the prisoners, all of whom seemed to be contented with their blankets and a comparatively warm shelter from the

storm—telling one of the men to give me a "leg up"— I was pulled up by the jailer—all of the prisoners assisting and bidding me a most cheerful "good-night". The next morning after "turning out" the deserters and filling them with a hot breakfast at the jailer's where Charlton and the rest of the detachment with myself had spent the night, they opened up with a long and very strange story— Peters, the spokesman for the deserters, declared that two detectives (?) or, as they called themselves—"*constables*"—had followed them from near Weatherford, on the Bear Creek road, and arrested them. Instead of being armed as Sergeant Varily had informed the writer, they (the deserters) had parted with all of their carbines before reaching W—— for a good round sum. The pseudo detectives, therefore, found it a comparatively easy matter, with their double barrel shot guns to persuade the unarmed soldiers to "throw up their hands"— They had even started to turn back to Weatherford, when at the suggestion of one of their number negotiations were opened by which they were released by the fake constables—but, at the sacrifice of all the "greenbacks" the entire party possessed— After this compulsory squeeze, the detectives (?) and their plucked friends parted company. The writer resolved, upon his return, to investigate this matter and if the deserter's story proved true—and they had all corroborated Peters' statement—to secure the arrest and indictment of these Border Sharks.

The march back was cold and bitter— We were more than 100 miles from Fort R—— No handcuffs or irons could be obtained—and it was decided not to "rope them"— Thick ice was in all the streams— Calling Peters, the most intelligent of the prisoners, to me, the writer laid down the law: "Peters, I am going to march you to Fort R—— and I want no trouble; tell the men they shall be well fed and they shall have shelter whenever it is possible to obtain it— Corporal Charlton will be placed in direct charge of you—'fall in'—the men in the middle of the road in column of twos"— Then turning to the men—so that all could hear me—I added: "You men

must keep the middle of the road and obey all orders issued through Corporal C—— by me, without any question or discussion; Any movement by you to bolt the trail, or to escape into the chaparral will only result in your being shot down— You can talk and smoke and have freedom of movement—but you know both of us well enough to understand that there will be no trifling"— At 11 a. m. we started and camped at the Widow Jewell's ranch, 15 miles from Hillsboro— Placing the men in an open corn crib—assigning each a sleeping place and posting a man at the log door—he was ordered to "shoot the first man who left that position without authority from me". This was said loudly in the hearing of every man, and he was then asked if he understood it.

For the first time we now ascertained from the prisoners why they had so mysteriously disappeared from the map after leaving Weatherford and after being seen and talked to by Sergt. Varily on the Bear Creek Road—and why we got no trace of them the next night in Cleburne. It seems that just before reaching the town, upon the advice of the wily driver of their get-away wagon—they had turned off the Bear Creek Road and following a blind trail to the right had reached the little settlement of Buchanan—and bivouacking there that night—had come into the Cleburne-Hillsboro road again the next morning—shortly before I sighted them at the small creek or "branch" near H. During all of that miserable night while we were searching the slums and dives of Cleburne, they were at a comfortable, blazing bivouac fire not more than three or four miles away, debating the probabilities of their being followed.

At the first opportunity I proved the two citizens—who had been "kidnapped" from the train near Hillsboro—to be deserters— While giving them the "Third degree" in camp the first night after leaving H—— they were thrown off their guard by my suddenly shouting— "Stand Attention, Sir! when talking to an officer"! Which he did *instantly*. I then had them

stripped and found Government shirts and socks on both of them— They then made a "clean breast" of it, declaring that they were recruits of Troop "K" and had been enlisted but two or three months; all of which accounted for their non-military appearance when it was decided to hold them on suspicion— It also accounted for the inability of any one, either in the detachment, or among the old deserters of Troop "B", to identify them. Turning out the prisoners in the morning they were placed in column and the order was repeated— "Shoot dead instantly any man who starts to leave the road without my permission". It had the desired effect. Wherever I could find one they were placed in jail. In passing through Cleburne and stopping off to pay some bills—suspicion having been attracted to another man, I "rounded him up"—and after some strenuous "Third Degree" questioning—he proved to be a deserter from "Troop F" who had preceded the others by a few days— I had now ten deserters, and the "old man" driver of the freight wagon. As we approached Weatherford—I began to give some thought to the two alleged detectives or constables (?), and ransacked my brain as to the method for their capture. The rascally old driver had, after much diplomatic persuasion, informed me that these men were really constables and acting detectives, and one was even then acting as Deputy Sheriff of the County, and lived just outside of W—— While I was doubtful as to my power to arrest either, I determined to make a show of frightening them, and to report their case to the Civil Authorities for their disposal— I commenced a vigorous search— Riding into a ranch, pointed out by the prisoners, I inquired—"does Mr. —— live here"? Being in citizen's clothes and alone, my mission was not suspected— "That is my name", said a man sitting in a chair on the porch— "I arrest you then in the name of the United States Government for accepting bribes of deserters from our army, and allowing them to escape— My men are outside in the road—don't waste any words, but come right along"— To my astonishment, the man was so frightened that mounting his horse, which stood outside, and surrendering

his gun—he preceded me to the road—where he came face to face with all of his accusers, who now seeing him under arrest, made bold to unmercifully taunt him with his rascality—shouting—"Hey, Johnnie, where's my \$10.00?" "How much of a pile did you pull out of me at Bear Creek (?)" etc., etc., much to the bogus detective's discomfiture and chagrin. They had now the "whip hand". He rode like a little kitten under charge of Corporal Charlton into W—— when a complaint was entered and sworn to by all of the deserters, and he was placed under bonds for his appearance at the Spring term of the U. S. District Court at Tyler, Texas, where, some months later, the writer was ordered from Department Headquarters to appear as a witness against him, and the second constable whom I captured in much the same manner as the first, but nearer Weatherford. The old wagoner pleaded hard, saying that he had never been in such a scrape. It would "kill him to have to go to prison", etc.—but, knowing that Mackenzie was anxious and determined to break up these wholesale desertions that were then taking place in the regiment—many of them with the secret connivance and assistance of citizens, although it was never discovered that any of them were *constables*—and would endorse the most extreme measures I might make to accomplish it, I promptly placed him under bonds—and left him in W—— in charge of the Civil Authorities.

The Discovery—The Deserter "Squeals"

The streams were all frozen up— The weather was still icy cold— So far I had been unable to get any trace, or sure clue of the missing carbines which the men had carried with them when deserting, and sold. The deserters refused to divulge their whereabouts except to hint that they were somewhere between Crawford's Ranch and Fort R—— At last I determined to use heroic methods— At that date such methods were recognized as *legitimate*, if not *legal* in bringing recalcitrants to their senses, instead of

resorting to the slow and laborious, as well as questionable methods of Court Martial. These methods were legacies of the Civil War, and in the field, away from the complicated machinery of Post Administration—and on such duty—and under such *wide open instructions* as Mackenzie had given us, I considered it absolutely necessary to employ—I resolved to select the weakest minded man in the group of deserters, and, in the presence of them, the two corporals and the entire detachment, "*tie him up by the thumbs*", until he "*squealed*"—Such punishment was of almost daily occurrence at the great Draft Rendezvous—This was done with the desired result—and I located the missing arms, the property of the United States which I was out after, without further trouble. This man was Crafts—Placing the deserters in Mrs. Crawford's corn bins, the ground still being covered with snow and ice and the weather bitter cold—I determined to send in a mounted courier or runner to Mackenzie. Writing a hasty message—a personal note on a piece of soiled brown paper—a brief announcement of the capture was made, but reciting no details—also the condition of both the men and horses—"all nearly exhausted from cold and loss of sleep—the prisoners nearly barefooted, and with sore and blistered feet, chafed legs, etc.—but plenty to eat; horses unshod." He was urged to "send a wagon, some handcuffs—ropes—rations, etc., to meet me somewhere on the road—and without delay—between Crawford's Ranch and Fort R—I was proceeding slowly", etc.—The wagon met me, but not until I was within a few miles of the post—and just as the prisoners were emphatically exclaiming that they "*could go no further.*" They were bundled into the wagon, much to their and my relief, for these footsore and chafed cavalymen, as I had seen them in October after being dismounted in the stampede near Canon Blanco, were now in the same demoralized condition, and it is extremely doubtful if they could have been pushed any further afoot.

Hardin's Ranch—Two Viragos—The Search—The Threat

When Hardin's Ranch, 16 miles from Fort R——, was reached, I bivouacked my men and taking Charlton proceeded to reconnoitre— I found two tall, gaunt, leathery, bony, unprepossessing, sour-looking females — With some hesitation, I approached my delicate mission or undertaking and began to interview them, using all of the engaging manners and suave (?) diplomacy I was capable of—which, as a soldier—so I have been told— has never been of a very pronounced character. It availed me nothing— To the inquiry as to whether any of the men were at home, and if any carbines had been left at the ranch by these soldiers when going down the country, the reply was curtly snapped out—"No"!— They 'lowed they hadn't never seen no carbines; the "old man" wasn't home— I *politely* asked if I might "look about the ranch and premises"— That stirred the gall of these specimens of the gentle, tender sex— "No! you can't"!— Then I began a mild form of the "Third Degree"—and bringing up the man who had— under pressure—"Squealed"—to identify the women—and to make an even stronger statement as to the disposal of their carbines—we were met with nothing but repulses, followed by foul abuse—such as: "You blue-bellied Yankees better go away from here—if the "old man" was here he would lick you uns outen yer boots", etc.— I was not, at this point, inclined to spoil the reputation I had already acquired or sacrifice my good name, or make any slip by any "Violation of the Civil Law" now in full force in all parts of Texas—in view of Mackenzie's explicit instructions on that point— Neither did I feel inclined to be beaten just at this stage of the game—the end of this frightfully exhausting and most momentous trip, or to be balked and bluffed by these two raw bone, belligerent termagants, and lose the fruits of my thus far assured success— I wanted to make a clean "sweep up" of my trip, and, in order to do so—*I must have those carbines*, now that I felt I was so close to them— So I swung around to other tactics—or, rather *Grand Strategy*— "If you don't produce those carbines from their places of

concealment, which I know to be here or about your premises, I shall be compelled to search your ranch"— This last shot hit hard— More and more abuse, coupled with more threats of what the "old man" would do to me. The climax had now come— I could not see my way clear to bluff any longer— I felt that I must act at once and decisively— "Corporal Charlton, call the men at once— Search this ranch thoroughly— If necessary rip up the floors, and turn over the "*loft*"; ransack all of the out buildings, but be careful that you do not injure these *ladies*" (?) "If they resist or try to use any guns, treat them as you would 'he' *men*; jump on them, and securely rope them—and don't let them get 'the drop' on you— You take charge of the job and see that it is well done"— His steel-blue eyes flashed— My musketeer Corporal—"d'Artagnon"—sprang at it with a relish— He had heard, and been the object—of much of the abuse of these scolding viragos — The ranch was thoroughly searched—the "rough-neck" women offering no resistance except with their bitter tongues which shot off the vilest sort of "*Billings gate*"— It was without avail. The carbines were evidently concealed at some point distant from the house— As we were about to leave—the women, unconquered—again spat out— "If the 'old man' wuz heah he would lick you uns out o' yer boots". Here was a fine chance for another bluff. I walked up to them, and in my most impressive manner gave here this decisive Coup d'Etat— "*If your old man doesn't deliver those carbines into Fort Richardson by 10 o'clock to-morrow morning—I will bring this same detachment out here with a raw hide lariat and hang him to that oak tree*"— They had seen me ransack the ranch, they had known what that threat of hanging meant in the reconstruction days among the "bad men"—the "gun men" and desperadoes of the far South West— They showed signs of wilting—and I departed, inwardly cursing the luck which had deserted me at the last moment and compelled me to make a raw bluff which I knew full well I could not carry out or enforce in view of Mackenzie's *most strenuous official objections*—

Land the Prisoners—The "Old Man" Makes Good

Reaching Fort R—— in a few hours and reporting to Mackenzie the prisoners were "turned over"—and I was just seeking a shave, a hot bath—some good grub and a rest from the dreadful "wear and tear" of one of the most wearing and completely exhaustive duties I had ever performed, either during the Civil War or later, when Mackenzie sent for me— I was still in a very dirty and bedraggled suit of citizen clothes— I needed complete relaxation and rest from my week's gruelling trip—during which, with the exception of two nights, I had slept, or tried to sleep—"out in the open" in this howling icy "Norther"—and with much responsibility pressing upon me. "Ask the General to please excuse me until I shave, wash, and change my clothes"— Word came back at once— "Tell him that Gen. Hardie is here and wishes to see him particularly. Never mind his personal appearance—come now just as he is"! It was virtually an order— So I went but in a condition of wilted militarism. Mackenzie opened up with a most cordial introduction to Gen. H—— and the remark: "Gen. Hardie, I want you to see what my officers of *Civil War record*" (I inwardly grew profane) "can accomplish when they are sent out in weather like this to get results under merely '*verbal instructions*', and acting alone under their own initiative, good judgment and discretion— He has done far more than I expected of him and I am extremely gratified". He continued with profuse congratulations, thanks and personal commendations.

"Congratulations"—"Thanks"—"Special Commendations," Etc.—A Soothing Balm (?)

Gen. James A. Hardie, then an Assistant Inspector General U. S. Army—the one time friend and confidential Military Adviser of Abraham Lincoln, whom he selected to send on that delicate mission to Frederick City, Md., to

relieve Gen. Hooker from command of the Army of the Potomac just prior to the Battle of Gettysburg—appointing Gen. Meade to succeed him—happened to be at Fort R—— on his annual tour of inspection of the frontier posts. After such an introduction from Mackenzie—Gen. Hardie was very informal— He was a very handsome man, then about 48 years of age— He was very courteous and had an exceedingly attractive personality — With the disparity in our ages, he seemed, at that period, to be a very "old man". He had served in the Mexican War, and died as a Brevet Maj. General, Dec. 14, 1876— Placing both hands on my shoulders he said: "Young man, I am proud of you— General Mackenzie ought to be proud of having such an officer in his regiment." "I want to personally congratulate and warmly thank you for the fine work you have done— It was a duty of very great responsibility, and you should be commended not only by the Department, but by the entire Army. I believe it is a record that you should be very proud of." In rehearsing my adventures to them, I came to the incident at Hardin's ranch, and my encounter with the two "Jezabels"—Mackenzie flared up— "Didn't I particularly impress upon you in my '*verbal instructions*' that you must not '*violate the Civil Law*' in any way—I ——" Without waiting for him to finish his sentence, I replied: "Well, Sir! I have violated no Civil Law. I have hung nobody as yet, only made a huge bluff. You will see those carbines here to-morrow morning". The "old man" who was going to "lick me out of my boots"—promptly at 10 o'clock—rolled into Fort R—— *with all of the carbines*. I happened to be at the Adjutant's office— "Is the Ginerall in"? "He is"!— "I've brought in them guns"!— After making a statement more or less satisfactory of how they happened to come into his possession, and after Mackenzie had "hailed him over the coals" for a "send off"—the rancher departed—"a sadder but a wiser" man. I never got any *sweet looks* from the "ladies" after that when duty called me past that ranch.

Lawton came in a day or two later. He certainly was "out of luck"—The deserters had not headed his way. He had gone farther than the writer—Way up into the Indian Nation (now Oklahoma), and not only had not succeeded in "bagging" anybody, but, most unfortunately, one of the best men in his detachment deserted, taking his horse, arms and entire equipment with him. After ascertaining what had come my way, he seemed to be much crest fallen.

A few days afterwards Mackenzie, upon hearing that another man of Troop "F" was known to be a deserter, and had been located rather vaguely as being in the "Keechi Valley"—sent for me, and, after smilingly giving me as well as he was able, the location of the ranch—and announcing that as I had been proved the "*champeen*" catcher of deserters, he was going to send me out after him—He trusted that I would not belie my "reputation"—After a day's trip in fine weather I was able to definitely place him, and after watching the ranch all day—surrounded it, and, without any trouble, captured him as he came in from his work in the field—My record now was: 11 deserters and 3 citizens, two of them Constables—with all the arms carried away from the post. Corporal Charlton had proved himself a very invaluable man. As a soldier he was wonderfully resourceful and active; in action he was intense, energetic and decisive. With his intelligence and good, horse sense, he would, even without the complete education which some men have *without sense*—have made a good all round commissioned officer—a credit to the regiment and to the Army—It is a pity that we did not have more of his type with which to build up the army with practical men of his caliber—instead of having so much over educated material.

I had gained much valuable experience in the methods of unearthing rascality, and in accomplishing results, under dreadful exposure and hardships; many trials and difficulties.

Shortly after this the writer received a letter of thanks from the Department. As it is the only one that he ever received, and as he never expects to receive another—it is esteemed as a rare curiosity—and it is modestly added to complete the record and round out the story.

HEADQUARTERS DEPARTMENT OF TEXAS,
Office of Ass't Adjutant General,
San Antonio, Texas, Jan. 4, 1872.

Second Lieutenant ROBERT G. CARTER, 4th Cavalry,
(Through Headquarters, Fort Richardson, Texas)—

SIR:—

I have the honor to acknowledge receipt of your report of the 9th ultimo, relative to your pursuit of deserters under Special Orders No. 280, Fort Richardson, Texas, dated November 29, 1871,—which resulted in the capture of ten deserters.

The Department Commander desires me to express to you his *gratification at your success*, and his *special commendation for the zeal and ability displayed by you*.

The good conduct and faithful services of the enlisted men composing the detachment, and Mr. Rhodes, citizen guide, is deemed a proper subject for a letter of commendation to the Post Commander.

I am Sir, very respectfully, your ob't servant,
(Signed) H. CLAY WOOD,
Assistant Adjutant Gen

Military Experience and Common Sense vs. Military Education and "Intensive Training"

If a man is not endowed with good common sense, or it is not an inherent trait—no amount of training he might receive at West Point or any other Military institution for the purpose of educating that sense into him, or cultivating what little sense he possesses—especially the military or fighting sense—or, any effort to convert him into a practical soldier, could make him one, and the time and effort will have been worse than wasted—It is simply impossible to supply in him by mere education what he is lacking through nature's gift—and this truth—absolutely axiomatic—applies to all walks of life— Good sense, combined with a liberal education well directed along right lines, makes for success in all pursuits, whether as President, lawyer, doctor, minister, the business man or the professional soldier— But all the education in the wide universe, unaccompanied by good sense, spells defeat for any class—and would not rescue a man from common mediocrity— The world's trail is strewn with such senseless wrecks— They are mere human derelicts on the ocean of life—and the more a man of that type is educated or over educated the worse it is; and the more accentuated does his failure become—the more apparent his lack of common sense, and the more liability there is to wreckage— In no other profession does this become so painfully apparent or more pronounced than in that of the professional soldier, when some desperate effort is being made to create—manufacture, or transform a little man in uniform, a parvenue or a man of mediocre caliber—into a great commander of men—one whose horse sense is particularly lacking—or which cannot by any amount of education or training be developed—and worse still when he himself through an over supply of egotism or conceit is not, nor can he be made aware of his failing, but bungles along until disaster overtakes him and his command, and every thing connected with him and them—

The writer claims that there has not been, nor is there now sufficient care taken in the selection of candidates for entrance to the Military Academy. Little or no heed is taken of their aptitude or fitness for a Military career—and that there are in the service to-day many officers who, from this lack of fitness and deficiency in common sense, are an incubus to the Army—and should be "canned"—Competitive examinations in Congressional Districts develop a class of bright students—some honor men ranking high in their class studies and highly specialized along certain lines, but who, from lack of inherent qualities, fail in the essentials that go to make up an alert, well-balanced, clear-headed, resourceful, decisive, "cracker-jack"—rough and tumble soldier in the field— It is not in them— Those who have had campaign and battle-field experience—have all seen this— Entrance to West Point on certificates or diplomas from High Schools do not altogether fill the bill either—for they are apt to be guided by political favoritism or Congressional pull rather than a selection on general merit and fitness for a military life[A]—based generally upon good health—a sound body and a clear, receptive mind—"Mens sana in corpore sano" but, above all things the one dominating desire to adopt the Army as a life career alone—combined with plenty of good, sound—horse sense—West Point will do the rest in the way of preparation and training— Many of the College and School systems are not uniform or in any way co-ordinated with the class instructions at West Point—and much that these students have gone over in Freshmen—Sophomore—Junior or even Senior courses have to be undone—gone over again—or entirely reversed— The writer has seen a College junior utterly fail or "fall down" at his preliminary examination for lack of thoroughness and drill in the *three "R's"*— All this is a waste of time— If then, the student's bent is not inclined to an Army life—and his heart is not in it—but to the law, medicine or the ministry—there is more waste and loss of time—in trying to convert a good minister, lawyer, doctor or grocer into a mighty poor soldier— All of these qualifications, and predilections—

the individual tastes and preferences of the young candidates should be considered, looked into and carefully weighed in selecting, educating and launching men into a career where they, by rapid promotion, are bound to become the future ranking officers and commanders of our Armies— Many a slip and disaster have occurred in an Army by misplaced judgment— slowness of decision and lack of common sense in trying to fit a "square peg into a round hole" or by educating a man for the service and permitting him to attain high rank and high command before it shall have been discovered that he not only does not possess the necessary qualifications for the same but is absolutely deficient in good sense—good judgment, decisive action, or even the ordinary military instincts to maintain the high standard of efficiency and success pertaining thereto—and upon which all depends— In a garrison of 10 troops of Cavalry and three Companies of Infantry—Mackenzie had not only carefully gone over the entire roster from which to select two officers upon whose experience and good judgment he could absolutely depend for the performance of a duty in which he not only wanted but expected and demanded decisive results, but he had revolved all the possibilities and probabilities of dismal failure had he selected any other than Lawton and myself.

[A] Theodore Roosevelt in his "Letters to His Children"—pp. 87-89, referring to his son "Ted" entering West Point, says: "It would be a great misfortune for you to start into the Army or Navy as a career and find that *you had mistaken your desires* and had gone in without fully weighing the matter. You ought not to enter *unless you feel genuinely drawn to the life as a life-work*. If so, go in, but not otherwise." * * "Mr. Loeb (Secretary to President Roosevelt) says he wished to enter the army *because he did not know what to do*, could not foresee whether he would succeed or fail in life, and felt that the army *would give him a living and a career*. Now, if this is at bottom of your feeling I should advise you not to go in. I should say

yes to some boys, but not to you." If all fathers had given as good advice to their sons who have been aspirants to that kind of military glory which would give them "*a living and a career*", we would have been saved the mortification of "canning" some of our graduates of West Point during this world war, who having acquired the "*career*" were not worth the powder with which to blow them out of their O. D. (Olive Drab) uniforms.

It is hoped that the writer will neither be charged with petty conceit, undue egotism nor personal vanity in making these simple declarations of facts the absolute truth of which never was, nor ever could be gainsayed by any officer of that period in the Fourth Cavalry.

In this entire campaign after these deserters, success was dependent, not upon any study or knowledge of tactics, strategy, or any game of war, but largely upon good, common sense, sound judgment—almost intuition—a ready resourcefulness and quick, decisive action— It was practically outside of a theoretical conception of any war problem—as we understand it, but included within the scope of its practical activities. No book has ever been written, or ever will be, which could begin to lay down any cut and dried plan of action, rules, or any fundamental principles in a case like this, or hundreds of other cases similar to the performance of such special duties, any more than a text book could have been written prior to 1914 on how to deal with the German methods of conducting a war for the subjugation of the world by trench, barbed wire and dug-out systems along the Hindenberg lines, etc. All the study of a life time involving such problems, or military knowledge, would be of no avail to some men,—whether civilians or soldiers—unless they possessed, at the same time, plenty of resourcefulness and horse sense and could readily adjust themselves to the ever changing conditions of those same problems. The factors never remain fixed or constant. It is the same in battle and with the factors controlling it—which

accounts for the lack of success of many so called soldiers by their failure to get away from fixed rules. There is one word that seems to involve the main spring of a soldier's action in all such emergencies—and that is—*Experience*—and the practical application of that experience to all of the problems of life whether great or small, but especially in puzzling situations like this, where the factors are dependent on no fixed rules—are never constant—and therefore events so shape themselves in such rapid succession that without quick, decisive action based upon one's resources and sound judgment gained by experience—the dependence upon study of any books which might bear in any way upon such conditions would, not only prove a most ridiculous farce, but would be offering a premium on commonplace student soldiers—obtuseness and asinine stupidity.

There is such a thing in the development of a soldier along certain lines for practical work, as *over education*, as well as *over training*— In the one case he thinks he knows so much that he cannot be taught any more, and is apt, therefore, to eliminate entirely the element of common sense—the one factor for success upon which he must largely depend—and to neglect to apply some of the most simple and practical principles in his earlier education—and, in the other case he may go stale, and lose much of his spirit, enthusiasm and energy while waiting to test out his knowledge in the real field of endeavor and practical experience.

Soldiers Not Born

It has been said that "artists and poets are born"—and "*soldiers are made*". True it is, however, that Soldiers are not born. There is not, and there never will be such a thing as a born soldier, not even in a hereditary sense. They must be trained. But—to educate and train a man to be a soldier certain basic elements are absolutely necessary. Ever since the world began, and hero worship and the cheers, applause and adulations were first

bestowed on such warriors as Caesar, Hannibal, Alexander and Frederick the Great, Napoleon, and on numerous other returning conquerors, it has become well known that certain elements or basic principles have been necessary upon which to build in order to develop and produce the really great soldier.

Taking the raw material to educate and train, it has been found essential that a man should possess one or more of the following requisites. Military bent, instinct or intuition— Military aptitude and spirit—and any one or all of these must necessarily be combined with good, sound, common sense. All, or any one of these elements must either be inherent or latent and ready for development—for it is—and has been found—absolutely impossible to develop these essentials in any one man by a mere process of military education or intensive training— Unless a man possesses one or more of these necessary requisites or material to work on, such education or training is so much wasted effort or labor lost.

It has frequently happened that men, without possessing any of these basic elements, not even military sense—or instinct, or the military spirit—have undergone a military education and severe intensive training to fit them for what they have been led to believe through their theoretical instruction are the problems of battle which they have got to face up to and overcome. Sometimes it has been found necessary that this initiatory effort shall be made on a real (not a sham) battle-field. The shock—the rude awakening, the stress, strain and disillusionment of real battle has then come with such a startling surprise to some men not physically up to a soldier's standard as to throw them off their feet—break them down before it is discovered that lack of physical strength alone debars them from the military profession, and so destroys their morale and esprit de corps as to render them unfit for further field service. The ever changing and rapid developments of battle are so great and constantly pressing that they call for

all there is in any man—and in the twinkling of an eye; his cool courage—his level-headed judgment—his every ounce of resourcefulness—and instant decision is called into such rapid action and it is so quickly drawn upon as to afford no opportunity for much study, long deliberation, or the privilege of consulting with others. During this sudden trying out process—the most strenuous that can be applied to any human being as a complete test of the would be and so called professional soldier—he may develop just this lack of stamina and courage— Of what possible use then is the swivel chair soldier who, without military bent, instinct or spirit—the military coup d'oeuil or sense—rushes into battle only to find that it is not what has been described to him—that the spectacular and moving picture feature of it is all lacking—and that he is, in every sense out of place in command of battle service soldiers and an entire "misfit." Could anything be more pitiful or pathetic than to see an over educated, over trained soldier of twenty or thirty years' service who has never been "tried out" when he first makes this discovery? The writer has seen it! These men when faced up with responsibility, and an emergency, exigency or crisis arises—always "fall down". They are soon led to recognize their absolute unfitness for the military profession, for a military command or to handle any problem growing out of a military position requiring ripe experience along the lines of ready judgment, rapid action and quick decision. It is generally too late then, however, few having the good sense to recognize their failure and leave the service in time to avoid the disaster that is sure to overtake either themselves or the unfortunate men under their command and subject to their blunders and almost criminal short comings. This disposes of an officer's going into battle before he is ripe—or has been given the battle instinct and battle sense to try out his theoretical battle knowledge in the presence of any enemy on the assumption that the book knowledge he has gained has fitted him for such a test out.

Sometimes—all this effort to make a man a soldier who does not possess the necessary elements, is attempted through the "Plattsburg system" of intensive training with the same result— Again it may be tried through numerous service schools—the General Staff—the War College course, etc. But—eventually and inevitably without some one or all of these basic elements to build on—to unfold, develop and train whatever of the military spirit that there is in him, it will become necessary, sooner or later to eliminate him from the game—i. e., to "Can" him. The writer has scarcely ever seen it fail— And when there has been any exception to the rule through political pull or favoritism—and this incompetent, would-be professional soldier is retained, disaster has been written all over the pages of his unfortunate military career. All of our wars—the Civil War—Spanish-American—and now our great World War have clearly demonstrated this. It is pitiful therefore to see men struggling along in uniform—absolutely incapable of acquiring battle instinct or battle sense (simply because they cannot be taught) and the requisites for a rough and tumble soldier in the field, capable of commanding men under all circumstances of the emergencies and crises continually arising to test out a man's military resources—and his ready adaptation to the problems before him, etc.—because of the lack of just those elements that go to make up the ever ready soldier. The education of such men along military—but, more especially along the line of battle problems is an offense to the nostrils and a clear violation of common sense, besides giving most battle-service soldiers an indescribable weariness.

Courage Alone Not Effective

Courage, either in the Army or civil life, is a cheap commodity. Almost every soldier should and does possess it to a certain degree. All combative animals have it more or less. It certainly is not a rare virtue in our service.

The man who does not possess it is an exception to the rule— The point is, however, whether he has that amount of physical and moral courage to a degree which, without common sense and the military spirit—would make his acts a military success. The writer thinks not— Too much stress has been laid on the mere physical brute courage of the soldier. Without it is combined with good military sense—it is doubtful if possessing courage alone could ever make a success of anything in which any of the military elements cited enter as a factor. Nothing so surprises a man of mediocre caliber—one who has been mistakenly or wrongfully steered into a military career without there being the slightest evidence of his fitness for it—one who has been stuffed full of the theory of war and of battle conditions, as to—suddenly butt up against the real article—a genuine wild-cat battle with all of its quickly varying conditions and phases. And by such a battle I do not mean one afar off; at some observation or listening post within sound of the guns—or in some bomb proof or sheltered dug out—where he can talk over the telephone; or look upon it as he would a moving picture—but directly on, or right in rear of an infantry battle-line under direct rifle, shrapnel, canister, or machine-gun fire—a bullet-swept field—such as many of us Civil War men saw on the battle-field of Fredericksburg, Va., Dec. 13-14, 1862. One hundred and fifty yards from the "Sunken Road"—at the foot of "Maryes Heights". With no cover except the shell-mangled, disemboweled bodies which we rolled up in front of us and used for breast works, behind which we sought the only shelter we had for 30 long winter hours in the half frozen mud—the plane of fire just grazing our heads on that bullet-swept terrain—and the bodies being whipped, frazzled and torn to pieces in front of our noses by terrific rifle and shrapnel fire as we vainly endeavored to relieve our weary frames by turning over from right to left or on our backs and stomachs.

That was a battle-field where the soldier not only had to use his courage, his wits and common sense, but all of his resources. He will doubtless

discover in a few minutes that this situation and this crisis was not included in what he has studied and booked up as theoretical battle knowledge and does not apply or fit in to any battle scheme that has been—without consulting him—staged on his front—and particularly to such a frightful and perilous situation. Right here will come in his aptitude and true merit as a soldier—and his real practical test out. It applies to any other military problem where the element of common sense must enter as a determining factor. It enters into all walks of business where business sense is so absolutely necessary. It entered into this problem of the pursuit of deserters. All of our varied campaign and battle service, and experience and knowledge gained during that great Civil War—and our practical activities in scouting and campaigning after wild, hostile Indians subsequent to that war entered into this chase and capture, as *Military factors*—without which we would have been as helpless as two children.

Who could look ahead into that long, trackless, desolate hundred miles of thinly settled country—almost a wilderness—with small towns more than 40 miles apart—in the midst of a bitter cold tempest of rain, snow, sleet and ice—and rely upon any Service School scheme of study, or War College papers and compositions upon obsolete campaigns and battles—or any extended use of war games—annual maneuvers or sham battles, etc., things that many of our young officers have been fed upon for years to fit them for great wars, emergencies, crises, etc.—and predicted any success for either Lawton or the writer? Any experience (?) gained in such theoretical military knowledge as would fit into such a case—would have been about as effective for Lawton and myself as our study of the Sanskrit and Chinese languages.

It was a problem based purely upon military experience gained by hard knocks and campaigns and in battles—seasoned up with plenty of good, sound horse sense—combined with our battle discipline and morale;

courage, resourcefulness and powers of endurance entered, of course, as factors. These were our guides. One's complete education, and years of the most violent intensive training ever devised by any military machine of West Point Manufacture would have accomplished absolutely nothing along the lines we worked to secure the unqualified success—that was expected and demanded of us by such an exacting soldier as Mackenzie. There was nothing the writer had so laboriously studied and learned in his course at West Point that could by any construction or stretch of the imagination, have fitted in, or been of the slightest use in this problem. No Mathematics—No Algebra with its "Binomial Theorem;" no plane Geometry with its fascinating "Pons Asinorum"; No Trigonometry with its sines and co-sines; no Descriptive or Analytical Geometry with planes of reference, etc. No Calculus with its integrations and differentiations; or equations "A" and "B". No Spherical Astronomy with its "Polaris"—or projections of the Eclipse; No Optics or Acoustics. No spectral Analysis. No trays of Minerals—with the blow pipe and testing acids to determine "Fools Gold" or Iron Pyrites from the real article, would have fitted one for the real acid test when the most critical stage of the game—confronted him. Neither would the perfect tactical drills—magnificent parades and inspections which have so delighted foreign visitors and the American people who have a right to be so proud—as the writer is himself—of our great National Military Academy—probably the finest Academy in the world— But—and here comes the crux of one's best endeavors along military lines where complete success is the goal—the education the writer gained during that Civil War—the daily experience—the frequent campaign and battle tests—the self control—the patience—the confidence—the discipline and morale, tried out as in a crucible—the strength, steadiness and tenacity of purpose under battle conditions—with rifle, shrapnel and canister fire—for there were no machine guns or grenades in those days—in such battles as Bull Run—Antietam, Fredericksburg—Chancellorsville, Gettysburg, etc., and the

influences which they wrought upon one's character in later years to deal with things that to some men would appear to be simply impossible—all these combined with the true military spirit—and good, common sense were the determining factors in that strange adventure so far as they are able to guide us in this mysterious and complex game of life—or can enter into the human problems in which we engage and are ever attempting to solve to our satisfaction and credit. Such was the philosophy and logical reasoning of we two "hold overs" of the Civil War, as we plodded our weary way across the black prairies—in the howling "Norther"—in our pursuit of these deserters. Little or no thought was given to the training received at the Military Academy beyond a well nourished pride in its motto of "Honor—Duty—Country"—the balance was in our pride as battle-service soldiers of the Civil War—and all of our knowledge and experience gained thereby—but especially so far as the writer was concerned to a short period of service at a huge conscript and "substitute" camp[B] where he acted as a provost guard—and as a young detective among many deserters from every Army and Navy in the world—hardened and desperate criminals of the worst description—intent on receiving a large bounty only to desert at the first opportunity and enlisting at another rendezvous—repeating this trick ad libitum. Here was real human character depicted in its worst forms of iniquity—depravity—greed—selfishness—low cunning—trickery, treachery—atrocities—and the most desperate crimes—not stopping short of black-jacking—garroting—sand-bagging—robbery and frequent murders. To mingle with them was to know their types—their methods—habits, resources, etc. All this knowledge was of incalculable value to the writer when the plunge was made into darkness and the depths of an uncertainty—of an adventure the outcome of which could be but problematical or only to be guessed at.

[B] Note—Men who had been paid large bounties during the draft period to take the place of men who were *long* on money, but were

short on gall—and who had no stomach for a fight of any kind.

All this applied to Lawton, who, although he was not a graduate of West Point, had had the same campaign and battle experience as the writer—and as Lieut. Colonel Commanding the 30th Indian Volunteer Infantry had developed in him all of the necessary elements at Chickamauga—Missionary Ridge—Dalton—Resaca—Kenesaw Mountain and in his march with Sherman "from Atlanta to the sea"—which, as essential factors would fit into our problem—and which, many years later, he fully exemplified in the Philippines by his push, energy, iron will, resourcefulness, well-balanced judgment and quick, decisive action which strongly marked every movement in his campaigns, and characterized him as the personification of an ever ready and perfectly trained—although not *intensively* trained—soldier—the magnificent soldier without frills, furbelows, fuss or feathers—that he was—

Training of the "Rough Riders"

Too much stress has been given to a long, intensive training as absolutely necessary to fit men to become good, reliable battle-service soldiers, or to enable them to tackle either purely military problems, or such problems as confronted us in our long, exhaustive pursuit of those deserters. Perfection of drill and military training is one thing through a continuous and harassing barrack or field training. To fit men to become alert, resourceful, obedient soldiers for quick and ready service through discipline and a minimum of tactical drill is altogether another thing when a war is fully on. Theodore Roosevelt in his Autobiography (p. 250) says: "The reason why it takes so long to turn the average citizen, etc., into a good infantryman or cavalryman is because it takes a long while to teach the average untrained man how to shoot, to march, to take care of himself in the open, to be alert, resourceful, cool, daring and resolute, and to fit himself to act on his own

responsibility (individual initiative). If he already possesses these qualities there is very little difficulty in making him a good soldier (nor should it take a long time). All the drill necessary to enable him to march and to fight is of a simple character. *Parade ground and barrack square maneuvers are of no earthly consequence in real war.* When men can readily change from line to column, and column to line, can form front in any direction, and assemble and *scatter* (deploy), and can do other things with speed and precision they have got a fairly good grasp on the essentials."

No amount of long drawn out drill will give him battle instinct or battle sense; not until he goes in under fire and faces up to what he sooner or later has got to encounter,—drill or no drill—does he acquire it.

Leaving out the non-essentials and endless repetitions of drill during a war crisis (and by the non-essentials the writer means a cut and dried program from 5.00 A. M. to 10 P. M., with "manual of arms by the count"—all dress parades, reviews and other ceremonies, marching or "hiking" with a full infantry pack in a temperature of 109 deg. in the shade, to see how men can *intensively* endure such heat, or, in other words, a persistent effort to break these men down and determine whether they have any courage, endurance or guts)—it should take less than three months to make an alert, steadfast, reliable and efficient battle soldier in time of war, and not more than six months in time of peace if more perfection is arrived at, unless it is desired to specialize in artillery, engineering and the Scientific Corps. Much less time was taken during the Civil War. Most of these intensive training sharps and cranks harp incessantly about the absolute necessity for a long period of "*discipline*". The writer is nearly a crank on that subject, for discipline is the real, true and vital basis on which to build for a battle soldier. Then employ most of the few weeks, taken as a limit for training, in discipline alone—making that the one objective upon which to concentrate the intensive effort, devoting the balance of the time to sufficient tactical

drill to readily handle them under fire, and no more, or until the first deployment and the shrapnel or machine gun fire of battle demonstrates the fact that any and all tactical formations whether perfect or more loosely coordinated are soon broken up. Any more tactical drill than is sufficient for such a purpose in time of war—when all preparation must necessarily be hastened—is simply a mere repetition looking to more perfect formations and movements and therefore a sheer waste of time and effort.

Both Theodore Roosevelt and General Leonard Wood were then right in their grasp of the situation and summing up of five weeks of *training* and *battle activities* of the "Rough Riders". Neither had had any military training, either theoretical or practical—one having been a college student, writer, ranchman, police commissioner, Secretary of the Navy, etc., while the other had been a medical officer. Both, however, had been out in the open under the stars, were alert, self-reliant, versatile, many-sided, broad-gauged, tense, strenuous, level-headed, far-sighted, sagacious, but withal, endowed with a large stock of good judgment and plenty of good, sound horse sense. Neither had drilled a troop of cavalry—much less a regiment—but they had had some good regular officers and old non-commissioned officers assigned to start them off, and furthermore, in the face of a war, then on, and quick preparation for immediate battle service absolutely necessary, both saw at a glance what every good soldier—whether theoretical or otherwise—should see, that there was no time to waste in the mere niceties of a perfect tactical drill; that all of the non-essentials would have to be cut out—and the one essential, which they kept steadily in view, in dealing with and licking into shape such a body of men as the "Rough Riders" were, and which they were so suddenly called upon to organize and put into battle—was *discipline*, more *discipline*, and then *some*; to control the unruly elements, eliminate the really vicious, and administer the severest punishment, tempered with justice and mercy, for any and every infraction of the disciplinary laws governing any large bodies of men trying

to adjust themselves to the novelty of control by superior authority appointed by the Government to hold them in check, and to give them just sufficient tactical drill to get them into and out of a battle mess, in a fairly orderly fashion. The "Rough Riders" had been gathered from the "four corners of the earth." What good could six months or a year, or even longer, of hard drill or long drawn out intensive training have done these men with war already on? They would soon have "bucked"—grown disgusted—gone stale—lost their spirit and enthusiasm—their morale and force, and given their officers no end of trouble by their restlessness and eagerness to try out their mettle and "get in". They needed plenty of hard discipline and proper guidance daily, and Theodore Roosevelt says they *got it*. They already possessed most of the other qualifications which he so clearly enumerates. They needed to be taught prompt obedience to lawful authority, and they soon found that out and who were their leaders. What more did they need to fit them for battle than what he so concisely states in the way of tactical drill, to enable them to get on and off a battle-field, and the courage-born stimulus of good competent officers and non-commissioned officers? Most of them already knew the use of arms, and nobody ever stands up on a battle line and exercises in the manual of arms, either "by the count" or "at will". There was no time to put them into large cantonments with other troops and intensively train them according to a War College prescribed schedule. *Everything had to be sacrificed to time.*

The late Col. Arthur Wagner, U. S. Army, is reported to have said shortly after the Spanish-American war, when asked what his experience had been at Santiago—"There was nothing I saw there that fitted into my text books in any way."

No cut and dried plans such as might be worked out in a Staff War College to fit into every program could be used, unless, perchance, the conditions which we were constantly meeting fitted into such plans—which

they seldom do—and we could not afford to fall back on any "perchances", necessitating, as they would, the rapid changing of such plans, in the face of a situation or crisis which might and did demand immediate and decisive action.

The query then naturally arises—of what vital or practical use is much of these enforced student theoretical courses at Leavenworth and the Staff War College, especially in feeding up officers—who have no special aptitude for the profession—on sham battles and sham war maneuvers, if, after stacking up hundreds of these worked out war problems, such as four or five different plans for the invasion of Mexico, and the same number for the invasion of Canada, it shall be found that just at that particular time the conditions bear no relation whatever to, or fit into these carefully worked out and elaborate plans, all of which may, and probably will have to be hurriedly changed, when there is little or no time to do so, just as the crisis of a sudden campaign is forced upon us or is quickly culminating. Any commanding officer of our army who cannot then quickly change that cut and dried plan thrust into his hands by the War Department, and in the face of sudden and almost insurmountable obstacles, and all of these conditions entirely foreign to such plans, to work out in front of an enemy already mobilized for battle—why—his name is—*MUD!!*

In all measures of this kind we felt compelled to take relating to these deserters, the exigencies we had to face at any moment and the plan we hastily made to fit into them, proved to be the deciding factor. Such a thing as pursuing those deserters under any cut and dried programme would have been not only ridiculous, but a blithering farce. That is why, with a man of Mackenzie's horse sense, we were left to perfect freedom of action, and our own independence or individual initiative. Therefore, while it may seem almost treason for a graduate of West Point to declare it, nothing that the writer had ever learned there was of the slightest value to him in trailing

these men. It was a problem absolutely separate from the ordinary military processes, and governed entirely by other factors than those to which an education at the Military Academy had any relation.

Intensive Training as a Fine Art (?)

The writer's son, a Major of Infantry (a temporary Lieut-Colonel), took over to France a training battalion of the Sixteenth U. S. Infantry from Syracuse, N. Y., in November, 1917. He was trained in the Toul Sector by a Major Rasmussen of the Canadian Infantry (later killed by an H. E. shell). He says that a few weeks of practical trench training and hand grenade work, etc., was of more value to him than months of such training as he had had in the Syracuse Camp.

The writer had a son-in-law who had had fifteen years' experience in the field as a Civil Engineer with the largest company in St. Louis—surveying, platting, laying out suburban tracts, including road building, sewer and culvert construction, etc. He lacked the elements of military engineering, pontoon bridge building, military trenches, with barbed wire placing, hand grenade work, etc. He entered the Fort Riley Training Camp in May, 1917, was transferred to Leavenworth, thence to Camp Meade, Washington Barracks, Laurel, Md., and then to Camp Lee, Va., where he was employed digging trenches for the third or fourth time, and building pontoon *land bridges*, when he had made a record throwing bridges again and again with his company across the Eastern Branch of the Potomac river. His skin was almost trained off his body. He lost his spirit and enthusiasm, became absolutely disgusted, but finally, through a "*pull*" at Headquarters, A. E. F., he got "over" in March, 1918. Was immediately assigned as a Captain of the 101st Pioneer Regiment, 26th N. E. ("Yankee") Division, and after some more *sector training* was in the Chateau Thierry and St. Mihiel drives and "made good" under Colonel George Bunnell (a graduate of West Point, who

was a practical soldier,) as a pioneer engineer on the battle line, opening the roads for the Infantry and Artillery, cutting barbed wire, etc. *No more army for him!* But for my earnest protest and advice he would have resigned in disgust several times.

When the word goes forth from our intensive trainers and sham battle heroes that it takes nearly a year to make of such a man an efficient engineer in the field, when for practical road building, rough pioneer work under fire, and all round resourcefulness he could give many of our West Point graduates "cards and spades", most of such enforced training, which the writer has knowledge of, is a disgrace, and the would-be trainers should be "canned" before they reach a battle line.

The writer was credibly informed that some of the so called intensive training took this form. A lot of condemned rifle cartridges from one of the arsenals was sent to Camp Meade, Maryland, and, on the score of economy, it is presumed, they were issued for target practice on the range. Some of the officers knew of the danger in their use and protested—as it was "slow fire" ammunition— But they were directed to instruct their men to "*hold on*" to the target so many seconds (20 more or less) to compensate for the time lost. Several men were badly injured (burned) by the "back fire" upon throwing the bolt. The ammunition was still used under protest— *Fine training for sharpshooters.* Any battle soldier knows that these officers would have been fully justified in refusing to obey such orders—when it had become known what risks were involved—even life itself. These cartridges were not only absolutely useless for such training—but it was little less than a crime for any officer to compel his subordinates to expend such dangerous ammunition. It was reported that the men seized the balance and either buried or otherwise destroyed it. What a travesty on preparing men for battle! If *such intensive training* was employed in these Cantonments to fit men for fighting, with a war already on, what could be

expected of the Instructors, employed in that kind of work, who had got to taste the joy of battle? This matter was not made public, but was either concealed, camouflaged or treated so lightly as to suggest a case of "whitewash." Men were sent on "hikes" over hard, frozen roads, covered with snow and ice—in old, worn out shoes—their feet nearly bare; all under protest from their new, untried officers—who naturally wondered at such training and the necessity for it,—also the risk in the face of an epidemic of "flu"—

The True Test-Out—Acquiring the Fighting Sense

The writer, the youngest of four brothers, was mustered into the volunteer service, Aug. 5, 1862, at the age of 16 years, having been rejected the year before on account of age and an over supply of men. His regiment, the Twenty-second Mass. Vol. Infantry (Henry Wilson Regiment), was a fighting regiment from Boston and vicinity. Only 45 Union Infantry regiments lost 200 and upwards in killed and died of wounds on the field during the Civil War. The Twenty-second lost 216 and stands 27 in that list. In a list of all Union Infantry regiments that lost over 10 per cent in killed on the field, it stands number 13—with a percentage of 15.5 per cent—and, based upon a maximum percentage of enrollment (1393 men), it stands number 16—"Fox's Regimental Losses"— Its service was in the First Brigade—First Division—Fifth Corps, Army of the Potomac. We recruits arrived on Arlington Heights to join this fighting regiment, en route (whereabouts not located) from the "seven days' battles" on the Peninsula. The officer in charge of us had given us no drills—no training of any kind. He was returning from leave, and spent most of his time *rusticating* around the "Old Willard". We joined the regiment at Halls Hill, Va. (near Falls Church), bivouacked in a battle line as it was marching into the defences of W—— from the second battle of Bull Run. The noise of battle was on; a

spluttering picket firing was in evidence a few hundred yards from us. During our stay here of two days—a first class drill sergeant gave us an hour each day in the "facings" and the use of our guns, which had been issued to us at midnight of Aug. 29—in a terrific thunder storm, during which we were soaked—and in a bivouac without shelter. This consisted of instructions in taking them apart, cleaning, assembling, rapid loading and sighting. We remained in reserve in the fortifications of Washington, marching hither and thither until Sept. 12—when we started, in a temperature of 98 deg., after a drenching night's storm, on the Antietam Campaign— There was no time for further training. We were put on the battle line—sandwiched between our Peninsula veterans of seven battles. The lines were so close that our range was practically point blank. There was no adjustment of sights—no wind guages—none of the usual methods for work on a target range. It made little difference whether the trajectory was flat or otherwise. Any boy who had ever used a shot gun could load and blaze away into the close lines. The line officers and file closers were veterans. The battle discipline was flawless— We touched elbows with men who had acquired the battle sense and instinct in the hell of rifle fire—shell—shrapnel and close up canister guns of the 12 pdr Napoleon type. A few days after a bloody reconnoissance across the river, in which one of our regiments lost 289 men killed, wounded and missing in 20 minutes, we had a few days' drill—and that *was all we ever got*. We were as good soldiers as ever marched the roads or ever went in under our battle flags—at Fredericksburg—Chancellorsville, Gettysburg—and on to the Seige of Petersburg. We needed no long, drawn-out intensive training—because there was no time to give it to us— Our superb officers all recognized that—and, as soon as we had got our *balance*, and recovered from the battle shock—we fitted into the bloody game of war without any waste of time, effort or lost motion. Our manual of arms would not have undergone the critical scrutiny of a "*yearling Corporal*" at West Point—or a "color man"

"throwing up" for colors at guard mount—nor would our crude attempts have excited much pride in the tactical officers at a perfect West Point dress parade. Our shooting in the open at from 150 to 500 yards might also have aroused the merry laugh of a target range sharpshooter with all of his implements for making a record score. But we were *not striving* for a *record score*—just shooting into massed formations and closed up battle lines to kill—and we got there just the same with the official record as cited. That record tells the story— At midnight on May 8, 1864, near Spottsylvania C. H., in a hand to hand fight with the Sixth Alabama, the regiment captured their colors and more prisoners than were in the ranks of the Twenty-second Massachusetts. Two of these brothers, on account of their youth, refused commissions, although their father, who had spent two years at the Mil. Academy in the class of 1836, was then Chairman of the Mil. Com. of the Mass. Senate; was in daily conference with John A. Andrew, the great war Governor—and could, by a "pull" have easily secured them. One was "specially commended" for good conduct at the Battle of Fredericksburg, Va., while the other untrained brother, (Walter Carter) as Sergeant Major of the regiment, was specially mentioned in the report of the Commanding officer of the regiment for "*coolness under fire, and personal bravery in all battles of the campaign*"; (Reb. Rec—Ser—I—40: 459) this Campaign, May 4 to June 18—1864—from the Wilderness—Laurel Hill—Spottsylvania C. H. (May 8-22—under fire day and night), Jericho Mills—North Anna, Totopotomoy Creek, Bethesda Church—Cold Harbor—Jerusalem Plank Road (Norfolk and Petersburg R R—later, the spot where the Battle of the "*Crater*" was fought). If there was ever any better soldier than this untrained but not *world-advertised* Sergeant-Major of one of the best fighting regiments in the Army of the Potomac—the writer, in nearly 60 years since those old days, has not met him. On May 10, 1864, while acting as liaison officer for the Major—commanding the left wing of the regiment, which was cut off from the right wing and in a cul de sac swept

by a frightful cross fire—he was directed to cross the Brock Road (about a mile or more from Spottsylvania C. H.) and communicate to the Colonel the perilous position of the left wing. He crossed this sunken road—swept by rifle and canister fire, at close range. His blanket roll was cut in several places; his eye was burned and closed by a *hot bullet*—for several days—The next morning he took in on his back, from a rifle pit to save his life, a wounded comrade and friend under fire. Being a non-commissioned officer, he received no brevets—no medal of honor—no Legion of Honor, or Croix de Guerre—etc. So much for this battle-trained, but not *intensively* trained—volunteer Sergeant-Major of an Infantry fighting regiment in the old battle swept Army of our youth. And he wears nothing to indicate his record of valor—not even the "Little Bronze Button" of the G. A. R.; nothing more than the satisfaction or consciousness of having done well his part in helping to preserve the Union and making it possible for the present generation of soldiers to have a country in which to exist, and looking on with a certain degree of smug complacency at the smiling assurance with which these present day trainers of men declare that it takes from six months to a year, or even more, to fit the average American boy to be an effective battle-service soldier— So much for this so called "*Intensive Training*" as a fine art.

The writer trained for three boat races at West Point in the '60s, rowing as "stroke" in one. He was urged to take up "*intensive training*" in the gymnasium. He did nothing of the kind, but simply used the dumb bells and Indian Clubs in his room to limber up and harden the muscles, and after a morning plunge, took a brisk walk and run of about two miles every morning for wind. There was no "training table", and he simply took care not to take on any extra flesh when eating the "hash" and "Slumgullion" of our plainest of plain Mess Hall fare. We consulted the famous Ward brothers of Cornwall-on-Hudson—"Hank", "Josh" and "Ellis" (who has been a famous Coach for years) as to our style and effectiveness of stroke.

They were simple Hudson river shad fishermen—long, lean, lank and spare as greyhounds, sinewy as whip cord—and as hard as steel nails— Every muscle was taut and tense as a racing oarsman's should be. I doubt if they ever saw the inside of a gymnasium—and laughed to scorn the idea that they had got to train in one. Rowing all day, for months, had, without developing their muscles into Sandow monstrosities—hardened them like steel—and they were, after pulling a long, swinging stroke, with quick recover, ready at all times to row for their lives. I do not recall of their ever being defeated—either abroad or in our own waters. *They were our trainers.* They were the finest oarsmen America ever produced. The writer saw them row the Harvard "Varsity" crew on the Charles River, and after passing them as though they were almost standing still, play with them and "*loaf home*". William Blaikie, Harvard's famous stroke, and later their professional "Coach," wrote after graduation, a book, "How to Get Strong". He advocated the gymnasium—the fatal trainer's paradise that has killed so many men. He died, when he had just passed his 50th year, of dilation of the heart superinduced by *intensive training*. He believed in enormous muscles and brute strength, rather than skill, endurance, and good form. He had overtrained and had an overworked heart. The writer was pitted against a man who was almost a duplicate of Sandow. He could have pitched me over his head. He could, with a twist of his immense arms, break a spruce oar in a racing shell. When the last few boat lengths of the long three miles loomed up—and victory for him was almost in sight—his sand gave out—his heart was almost broken and he lay down and threw up the sponge in defeat. He was "pumped out"; he had overtrained and "gone stale". He pulled "too much beef", and lacked the courage—sand—nerve and guts that wins at the most critical moment. He weighed 180 pounds. He could have been better utilized as a battering ram on a foot ball team to fall down upon some smaller player and break his back or neck. Our stroke weighed 140 pounds. Some men may train for a prize fight until they can run 15 miles

without breathing hard, and then, inside of three or four minutes after entering the ring begin wheezing like an old wind-broken horse. This is due to a *nervous contraction* of the pulmonary region, caused generally by nervous fright. They are too tense and rigid to fight effectively. The writer has seen the same thing in battle with over trained men—perfectly tense, dazed—almost speechless—from fright and nerve shock alone before they could get it under control. This does not imply that they were cowards—A man's supreme or best mental and physical efforts does not depend upon his size, his huge muscles abnormally developed by a long period of intensive training, or through his intellectuality acquired by years of school, college and university education, but, largely through the *spirit, force, courage, discipline* and *morale* which are behind his purpose—that purpose which must furnish the mainspring of his action.

This refers particularly to the soldier in his *intelligent* (and by this the writer does not mean the intellectual) application of that power and those resources to the actual conditions of the problem with which he is hourly, even momentarily, confronted when on a battle line under the hell of fire. This he has got to face, not as a highly organized or perfectly educated human being, trained, or over trained to the last limit for a specific purpose, but, on his *individual initiative*, and his *combative instincts* or *fighting senses*—without which no highly educated or purely intellectual human machine could long withstand the strain, for, until a man goes in under fire he cannot know, or even guess at his power and resources—his balance and morale which iron discipline combined with moderate, common sense training alone has inspired.

Many a soldier has gone into battle, and proved his bravery and battle efficiency under fire, without being a highly intellectual or even an educated man, and with no previous training that approaches anywhere near perfection, or that was given in these Cantonments, or, with any other

feeling or inspiration than the patriotic motive which has led him to fight for a great principle, or the incentive in the performance of a duty in strict obedience to the orders of his superior officers who, if they are true, and loyal leaders, with the right stuff in them, will supply all the deficiencies that any long drawn-out intensive training so often fails in.

It is now that his *real intensive training* has begun without his spirit and enthusiasm having become impaired, and he is better able to fully grasp its meaning than he would had it been daily, weekly and monthly crammed down his throat by rule, and by some theoretical trainer who had never seen a battle field—never been on one—or under fire, and who would scarcely know one if he should see it.

Our intensive training in most of these cantonments was begun backwards. Teaching men to shoot—and to shoot straight, preferably under conditions of noise, after a few days—closely simulating a real battleracket—is much more effectual as a starter—after he has been taught to knock down, clean, assemble and quickly load his rifle—and the proper use of it, than a manual of arms "by the count" (as the writer saw it) or any attempt at a perfect knowledge of the intricacies of the School of the Company, etc.

A man, unless he has been designated as a sharpshooter, or for "sniping"—or, has been ordered to remain under permanent or semi-permanent trench cover—is not satisfied to fight at from 1000 to 1200 yards—the range of a high power rifle,—for, under most atmospheric conditions and when in the smoke and confusion of battle, he cannot pick up his target, or see the object aimed at, or determine whether his fire is effective, therefore he is going to push forward to from 300 to 500 yards—the range of our old muzzle loading Springfield rifles. There, *in the open* he can see the enemy he is fighting—almost the whites of his eyes—and how effective his fire should be. *There is the place to fight*—and that was where our

American lads after the Hindenberg lines were destroyed—or turned—and the Huns were driven out into open ground—in their forward rushes—were so effective in cleaning and mopping up the best troops Germany had. They could not resist close fighting. They had not been trained that way, and we ought not to dream even of training our men in *long range—trench cover fighting*—except under certain conditions which are clearly indicated. Circumstances will govern those conditions.

A Brief Summary—A Record "Round-Up"

While this was not the concluding chapter, or the end of my dealings, either by way of experience or adventure with these deserters, or all that was likely to grow out of it, I felt that much of the burden had been lifted. The long chase in the howling "Norther". The novelty of our night at "Rhodes Ranch"—with seven people, including the crying baby, and the three dogs in a one room "shack" to keep us from perishing; sliding and skating over the desolate solitude, wind-swept and ice crusted; the two long, weary nights among the dens, dives and slums of Weatherford and Cleburne with my optimistic, jovial, joking—Musketeer Corporal; the all night study of the map—the one-legged, "Johnny driver" with his friendly Gettysburg battle-field reminiscing that came so near losing me the fruits of a night's hard labor—and uncertainty of plans in the early morning at the latter town;—the exciting, thrilling—almost spectacular capture of the men in the brush near Hillsboro; the bluff and threat of the wagon master; the novelty of a Texas log jail with its forbidding exterior and interior, but sheltering walls; the little, panic-stricken wagoner; the indictment of all the citizens implicated in their escape and temporary release under the stimulus of "blood money"; the "squealing" of Crafts on the concealment of the arms; the identification of the raw recruits;—the encounter with the fighting termagants at Hardin's Ranch; the hasty return of the carbines by the "old

man" who would "lick you uns outen yer boots"; the commendations and warm personal thanks of Generals Mackenzie and Hardie; the letter of thanks and congratulations from the Major-General Commanding the Department of Texas; all were now over, and I could at last, heave a great sigh of relief—and for a few days, at least, indulge in a brief period of well earned rest.

It is believed that this march of over 200 miles in the dead of winter, during an unprecedented severe "Norther" (10 deg. below zero) with sleet, snow, hail and ice almost thick enough to bear the weight of our horses, and for a part of the time in jeopardy of our lives—the capture of these ten (10) men with all of their arms and safe delivery into a military post, and the apprehension and indictment of the three (3) civilians for their share in the adventure—stands on record as the most complete and wide-sweeping "round up" of deserters, under all of the circumstances, ever known in the official Military Annals of the Department of Texas, if not in the entire United States Army— At all events, in any way it may be summed up, it was a most remarkable and "Phenomenal Capture".

Transcriber's Notes

1. Several typos have been corrected. The exception to this is when the same word was misspelled more than once (e. g. "guage").
2. The word "coup d'oeuil" uses an oe ligature in the original.

*** END OF THE PROJECT GUTENBERG EBOOK ON THE TRAIL OF
DESERTERS; A PHENOMENAL CAPTURE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.